



Bill Number: S.B. 1133

Gowan Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Specifies that the prescribed exemption from filing an additional financial disclosure statement applies to statewide and legislative candidates on the effective date and applies to all other candidates beginning January 1, 2027.

GOWAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1133
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-311, Arizona Revised Statutes, is amended to
3 read:

4 16-311. Nomination papers; statement of interest; filing;
5 definitions

6 A. Any person desiring to become a candidate at a primary election
7 for a political party and to have the person's name printed on the
8 official ballot shall be a qualified elector of the party and, not less
9 than one hundred twenty nor more than one hundred fifty days before the
10 primary election, shall sign and cause to be filed a nomination paper
11 giving the person's actual residence address or, if the person does not
12 have an actual residence address, a description of place of residence and
13 post office address, or, if the person's actual residence address is
14 protected pursuant to section 16-153, a post office box or private mailbox
15 address in the candidate's district or precinct, as applicable for a
16 district or precinct office, naming the party of which the person desires
17 to become a candidate, stating the office and district or precinct, if

1 any, for which the person offers the person's candidacy, stating the exact
2 manner in which the person desires to have the person's name printed on
3 the official ballot pursuant to subsection G of this section, and giving
4 the date of the primary election and, if nominated, the date of the
5 general election at which the person desires to become a candidate.
6 Except for a candidate for United States senator or representative in
7 Congress, a candidate for public office shall be a qualified elector at
8 the time of filing and shall reside in the county, district or precinct
9 that the person proposes to represent. A candidate for partisan public
10 office shall be continuously registered with the political party of which
11 the person desires to be a candidate beginning ~~no~~ NOT later than the date
12 of the first petition signature on the candidate's petition through the
13 date of the general election at which the person is a candidate.

14 B. Any person desiring to become a candidate at any nonpartisan
15 election and to have the person's name printed on the official ballot
16 shall be at the time of filing a qualified elector of the county, city,
17 town or district and, not less than one hundred twenty nor more than one
18 hundred fifty days before the election, shall sign and cause to be filed a
19 nomination paper giving the person's actual residence address or, if the
20 person does not have an actual residence address, a description of place
21 of residence and post office address, or, if the person's actual residence
22 address is protected pursuant to section 16-153, a post office box or
23 private mailbox address in the candidate's county, city, town or district
24 and ward or precinct, as applicable for a county, city, town or district
25 and ward or precinct office, stating the office and county, city, town or
26 district and ward or precinct, if any, for which the person offers the
27 person's candidacy, stating the exact manner in which the person desires
28 to have the person's name printed on the official ballot pursuant to
29 subsection G of this section and giving the date of the election. A
30 candidate for office shall reside at the time of filing in the county,
31 city, town, district, ward or precinct that the person proposes to
32 represent.

33 C. Notwithstanding subsection B of this section, any city or town
34 may adopt by ordinance for its elections the time frame provided in
35 subsection A of this section for filing nomination petitions. The
36 ordinance shall be adopted not less than one hundred fifty days before the
37 first election to which it applies.

38 D. All persons desiring to become a candidate shall file with the
39 nomination paper provided for in subsection A of this section a
40 declaration, which shall be printed in a form prescribed by the secretary
41 of state. The declaration shall include facts sufficient to show that,
42 other than the residency requirement provided in subsection A of this
43 section and the satisfaction of any monetary penalties, fines or judgments
44 as prescribed in subsection J of this section, the candidate will be
45 qualified at the time of election to hold the office the person seeks, and
46 that for any monetary penalties, fines or judgments as prescribed in
47 subsection J of this section, the candidate has made complete payment
48 before the time of filing.

1 E. The nomination paper of a candidate for the office of United
2 States senator or representative in Congress, for the office of
3 presidential elector or for a state office, including a member of the
4 legislature, or for any other office for which the electors of the entire
5 state or a subdivision of the state greater than a county are entitled to
6 vote, shall be filed with the secretary of state ~~no~~ NOT later than 5:00
7 p.m. on the last date for filing.

8 F. The nomination paper of a candidate for superior court judge or
9 for a county, district and precinct office for which the electors of a
10 county or a subdivision of a county other than an incorporated city or
11 town are entitled to vote shall be filed with the county elections officer
12 ~~no~~ NOT later than 5:00 p.m. on the last date for filing as prescribed by
13 subsection A of this section. The nomination paper of a candidate for a
14 city or town office shall be filed with the city or town clerk ~~no~~ NOT
15 later than 5:00 p.m. on the last date for filing. The nomination paper of
16 a candidate for school district office shall be filed with the county
17 school superintendent ~~no~~ NOT later than 5:00 p.m. on the last date for
18 filing.

19 G. The nomination paper shall include the exact manner in which the
20 candidate desires to have the person's name printed on the official ballot
21 and shall be limited to the candidate's surname and given name or names,
22 an abbreviated version of such names or appropriate initials such as "Bob"
23 for "Robert", "Jim" for "James", "Wm." for "William" or "S." for "Samuel".
24 Nicknames are permissible, but nicknames, abbreviated versions or initials
25 of given names may not suggest reference to professional, fraternal,
26 religious or military titles and may not include a slogan, a promotional
27 word or phrase or any word that does not actually constitute a nickname.
28 No other descriptive name or names shall be printed on the official
29 ballot, except as provided in this section. Candidates' abbreviated names
30 or nicknames may be printed within quotation marks. The candidate's
31 surname shall be printed first, followed by the given name or names.

32 H. Not later than the date of the first petition signature on a
33 nomination petition, a person who may be a candidate for office pursuant
34 to this section shall file a statement of interest with the appropriate
35 filing officer for that office. The statement of interest shall contain
36 the name of the person, the political party, if any, and the name of the
37 office that may be sought. Any nomination petition signatures collected
38 before the date the statement of interest is filed are invalid and subject
39 to challenge. This subsection does not apply to:

40 1. Candidates for elected office for special taxing districts that
41 are established pursuant to title 48.

42 2. Candidates for precinct committeeman.

43 3. Candidates for president or vice president of the United States.

44 I. A person who does not file a timely nomination paper that
45 complies with this section is not eligible to have the person's name
46 printed on the official ballot for that office. The filing officer shall
47 not accept the nomination paper of a candidate for state or local office
48 unless the person provides or has provided all of the following:

1 1. The financial disclosure statement as prescribed for candidates
2 for that office. {{BEGINNING ON THE EFFECTIVE DATE OF THIS AMENDMENT TO
3 THIS SECTION.}} A {{STATEWIDE OR LEGISLATIVE}} CANDIDATE WHO HAS FILED A
4 FINANCIAL DISCLOSURE STATEMENT FOR THAT YEAR PURSUANT TO SECTION 18-444
5 FOR PUBLIC OFFICERS AS DEFINED IN SECTION 38-541 IS DEEMED TO HAVE
6 COMPLIED WITH THIS PARAGRAPH AND AN ADDITIONAL FILING IS NOT REQUIRED FOR
7 THAT YEAR. {{BEGINNING ON JANUARY 1, 2027, FOR ALL OTHER OFFICES, A
8 CANDIDATE WHO HAS FILED A FINANCIAL DISCLOSURE STATEMENT FOR THAT YEAR
9 PURSUANT TO SECTION 18-444 FOR PUBLIC OFFICERS AS DEFINED IN SECTION
10 38-541 IS DEEMED TO HAVE COMPLIED WITH THIS PARAGRAPH AND AN ADDITIONAL
11 FILING IS NOT REQUIRED FOR THAT YEAR.}}

12 2. The declaration of qualification and eligibility as prescribed
13 in subsection D of this section.

14 J. Except in cases where the liability is being appealed, the
15 filing officer shall not accept the nomination paper of a candidate for
16 state or local office if the person is liable for an aggregation of \$1,000
17 or more in fines, penalties, late fees or administrative or civil
18 judgments, including any interest or costs, in any combination, that have
19 not been fully satisfied at the time of the attempted filing of the
20 nomination paper and the liability arose from failure to comply with or
21 enforcement of chapter 6 of this title.

22 K. For the purposes of this title:

23 1. "Election district" means this state, any county, city, town,
24 precinct or other political subdivision or a special district that is not
25 a political subdivision, that is authorized by statute to conduct an
26 election and that is authorized or required to conduct its election in
27 accordance with this title.

28 2. "Nomination paper" means the form filed with the appropriate
29 office by a person wishing to declare the person's intent to become a
30 candidate for a particular political office.

31 <<Sec. 2. Emergency

32 [This act is an emergency measure that is necessary to preserve the
33 public peace, health or safety and is operative immediately as provided by
34 law.]>>

35 Enroll and engross to conform

36 Amend title to conform

DAVID GOWAN

1133FloorGOWAN.docx

02/09/2026

02:12 PM

C: MR

130CYAFWV